Reinaldo Aguiar Marcano
2302 Britton Ridge Drive, Katy TX 77494
https://xislist.org/ (ISBN 9781971481296)

FORMAL NOTICE OF PROPRIETARY RIGHTS, INITIATION OF PROVISIONAL RIGHTS PERIOD, AND DEMAND FOR DUE DILIGENCE CONCERNING ADVANCED SENSOR FUSION AND DEPENDENCY GRAPH ANALYTICS

This Notice:
https://storage.googleapis.com/rj-aguiar/notices/IP_LIABILITY_DoD_Contractors.pdf

TO: CHIEF EXECUTIVE OFFICERS, FOUNDERS, AND CHIEF LEGAL OFFICERS

brian@anduril.com, contact@anduril.com (Brian Schimpf, CEO, Anduril Industries)

mgrimm@anduril.com (Matt Grimm, Co-Founder and COO, Anduril Industries)

akarp@palantir.com (Alex Karp, CEO, Palantir Technologies, Inc.)

rtaylor@palantir.com (Ryan Taylor, Chief Legal and Business Affairs Officer, Palantir Technologies, Inc.)

team@thielfellowship.org (Peter Thiel, Founder, Thiel Capital & Founders Fund)

menlopark-info@a16z.com, compliance@a16z.com (Marc Andreessen, Co-Founder, Andreessen Horowitz / a16z)

CC: DESIGNATED COUNSEL AND ADVISORY BOARDS

emil.michael@mail.mil (Mr. Emil Michael, Under Secretary of Defense)

Bryan Cunningham (Executive Director, Palantir Council of Advisors on Privacy and Civil Liberties)

Miles Jennings (Head of Policy & General Counsel, Crypto, Andreessen Horowitz)

Office of the General Counsel, Anduril Industries

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RE: ACTUAL KNOWLEDGE OF PENDING PATENT CLAIMS (35 U.S.C. § 154(d)) REGARDING COORDINATED SENSOR FUSION, POWER HOLDER ANALYSIS, DECENTRALIZED LEDGERS, AND THE AGUIAR MARCANO INTELLECTUAL PROPERTY PORTFOLIO

DATE: April 17, 2026

DEAR:

Mr. Schimpf, Mr. Grimm, Mr. Karp, Mr. Taylor, Mr. Cunningham, Mr. Thiel, Mr. Andreessen, and Mr. Jennings and Under Secretary Emil Michael,

This comprehensive technical and legal brief is served upon the executive leadership, chief legal officers, and primary venture capital architects of Anduril Industries, Palantir Technologies, Founders Fund, Thiel Capital, and Andreessen Horowitz to establish formal, legally binding actual notice.

As the vanguard of the modern military-industrial complex and the primary financiers of its expansion, your organizations provide the critical software, hardware, and capital infrastructure that powers the defense, intelligence, and logistical capabilities of the United States and its allies. Palantir's data-driven operational platforms, Anduril's autonomous sensor fusion technologies, and the massive capital pools deployed by Founders Fund and a16z are foundational to contemporary national security.

However, the core algorithmic architectures and operational methodologies powering your flagship platforms and portfolio companies intersect directly with the proprietary claims of the Aguiar Marcano Intellectual Property Portfolio. This expanded portfolio comprises fifty-two (52) foundational patent applications formally executed and filed with the United States Patent and Trademark Office (USPTO).

The primary objective of this document is to satisfy the strict requirements for "Actual Notice" pursuant to 35 U.S.C. § 154(d), thereby initiating the immediate accrual of provisional rights and the corresponding liability for reasonable royalties on all unauthorized commercial deployments of these technologies.

I. THE U.S. DEPARTMENT OF DEFENSE LICENSE GRANT AND STRATEGIC BLOCKADE

Before detailing the specific technological intersections of your respective platforms, it is imperative to address the overarching geopolitical encumbrance of this portfolio. Both Anduril and Palantir are primary contractors for the United States Department of Defense and the intelligence community. You are hereby advised that within the legal text of these patent applications, the inventor has executed an irrevocable, perpetual, worldwide, no-fee license granting the United States Federal

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Government the right to utilize these inventions for all national defense purposes.

Furthermore, the United States Department of Defense, specifically through Under Secretary of Defense Emil Michael, has been placed on direct notice of this license grant and is the designated authority administering this license on behalf of the military. While the U.S. government is immune from infringement under 28 U.S.C. § 1498, your unauthorized commercialization of these architectures for private enterprise clients, foreign governments, or local municipalities remains entirely unshielded and subject to immediate civil liability.

II. Anduril Industries

Target Operations: Lattice OS, Autonomous Sensor Fusion, and Coordinated Drone Operations

Target Leadership: Brian Schimpf (CEO) and Matt Grimm (COO)

Anduril's competitive advantage relies entirely on Lattice OS, an AI-powered operating system designed to ingest thousands of disparate data streams and turn them into a real-time, 3D command and control center for autonomous systems.

- **Method and System for Coordinated Dual-Vehicle Scanning (USPTO 19/559,842):** Your deployment of autonomous, multi-modal surveillance systems operating in tandem—where primary unmanned vehicles conduct active/passive data collection while secondary systems provide overwatch and logistical support—is heavily encumbered by our portfolio. USPTO 19/559,842 explicitly claims the methodology for coordinating multiple scanning vehicles via a secure link to simultaneously capture and fuse multi-spectral and RF data.
- **Autonomous Robotic Data Logistics System (USPTO 19/560,065):** As Anduril deploys advanced systems into bandwidth-constrained, contested environments, the physical transport of intelligence data via autonomous platforms becomes necessary. This patent claims the specific use of autonomous robotic units (including aerial drones and ground vehicles) to physically retrieve and transport high-capacity data payloads to bypass traditional RF or telecommunications bottlenecks.

III. Palantir Technologies, Inc.

Target Operations: Palantir Gotham, Foundry, and Privacy & Civil Liberties (PCL) Engineering

Target Leadership: Alex Karp (CEO) and Ryan Taylor (Chief Legal Officer)

Palantir's platforms specialize in integrating massive, siloed datasets to construct complex dependency graphs used by law enforcement, intelligence agencies, and commercial enterprises

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to identify targets, optimize supply chains, and track illicit networks.

- **Method and System for Power Holder Analysis in Social Networks (USPTO 19/559,957):** Palantir Gotham's ability to map terrorist networks and identify critical targets mirrors the exact methodology claimed in USPTO 19/559,957. This patent claims a systemic method for analyzing network dependency graphs to identify "indispensable bottlenecks"—individuals or nodes whose removal causes the largest disruption to the network, thereby identifying the true "power holders." Utilizing your platform's predictive graph analysis to identify these critical nodes for intelligence or commercial targeting constitutes direct infringement of this analytical framework.
- **Method and System for Information Leak-Proofing of Organizations (USPTO 19/559,873):** Palantir employs a dedicated Privacy and Civil Liberties (PCL) team to ensure data integrity and manage access controls for sensitive intelligence and medical data. USPTO 19/559,873 claims a proactive system that graphs access privileges against sensitive data flows to calculate a precise "potential damage score" or "blast radius" for any individual user. If Palantir's security infrastructure utilizes predictive modeling to compartmentalize access based on mathematically calculated insider-threat risks, it actively deploys our patented vulnerability mitigation engine.

IV. Peter Thiel (Founders Fund & Thiel Capital)

Target Operations: Strategic Capital Deployment and Board-Level Control

Target Leadership: Peter Thiel (Founder)

Through Thiel Capital and Founders Fund, Mr. Thiel provides the strategic and operational support driving the expansion of both Palantir and Anduril. As a co-founder of Palantir and a primary financial backer of Anduril [1], the capital deployed by your firms is actively funding the commercialization of our patented intelligence and sensor fusion systems. Financing the mass deployment of infringing defense technologies creates direct exposure to claims of induced infringement, tying your investment returns to the unauthorized use of this intellectual property.

V. Marc Andreessen (Andreessen Horowitz / a16z)

Target Operations: Defense Tech Investments and a16z Crypto

Target Leadership: Marc Andreessen (Co-Founder) and Miles Jennings (General Counsel, Crypto)

Andreessen Horowitz has invested hundreds of millions of dollars into Anduril Industries [1] and

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actively promotes the "American Dynamism" thesis to build defense tech. Furthermore, a16z manages a massive $3.1 billion suite of crypto funds.

- **Method and System for a Geo-Indexing Covert Ledger (USPTO 19/559,608):** As a16z aggressively backs decentralized finance and blockchain startups, your portfolio companies are at high risk of intersecting with our "DIOSDADO" framework, which covers the steganographic embedding of financial ledgers within spatial and geographic indexes.
- **A Method for Asynchronous Secure Communication with Post-Hoc Key Derivation (USPTO 19/640,945):** This patent covers a paradigm shift in cryptographic key exchange designed to defeat man-in-the-middle attacks by decoupling the data payload from the key derivation.[2] The cryptographic and blockchain startups funded by your firm must immediately clear their network protocols against these foundational security claims.

VI. Statutory and Ethical Mandates

Because your organizations operate at the highest levels of global finance and law, we must formally remind your leadership and counsel of the following obligations:

1. SEC Disclosure Requirements for Public Companies

For the publicly traded entities receiving this notice, specifically Palantir Technologies Inc., we remind you that if you find yourselves potentially infringing any of the Inventions covered in this intellectual property portfolio, you must assess whether it is necessary to notify your investors and file a notice with the SEC. The failure to disclose a material intellectual property encumbrance that threatens your core algorithmic products constitutes a severe breach of fiduciary duty to your shareholders.

2. Attorney Ethical Obligations (Model Rule 8.3)

Furthermore, a direct reminder is issued to the Chief Legal Officers, General Counsels, and all retained outside counsel receiving or reviewing this notice (including Ryan Taylor and Miles Jennings): You are strictly bound by your ethical obligations, including ABA Model Rule of Professional Conduct 8.3. This rule explicitly mandates that a lawyer who knows that another lawyer has committed a violation of the Rules of Professional Conduct that raises a substantial question as to that lawyer's honesty, trustworthiness, or fitness as a lawyer in other respects, shall inform the appropriate professional authority. If your internal audits regarding this patent portfolio reveal evidence of coordinated intellectual property theft, commercial espionage, or any other wrongdoing that may compromise the integrity of a court or the judicial process, you are ethically mandated to report such conduct.

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VII. The U.S. Federal Defense License

Both Anduril and Palantir are primary contractors for the United States Department of Defense and the intelligence community. You are hereby advised that within the legal text of these patent applications, the inventor has executed an irrevocable, perpetual, worldwide, no-fee license granting the United States Federal Government the right to utilize these inventions for all national defense purposes.

While the U.S. government is immune from infringement under 28 U.S.C. § 1498, your unauthorized commercialization of these architectures for private enterprise clients, foreign governments, or local municipalities remains entirely unshielded and subject to immediate civil liability.

VIII. Strategic Ultimatum

The executive leadership of each addressed organization is directed to immediately instruct your internal legal departments and outside IP counsel to cross-reference the fifty-two (52) applications within the Aguiar Marcano Portfolio against your sensor fusion algorithms (Anduril), dependency-graph intelligence software (Palantir), and portfolio deployments (Founders Fund/a16z).

A formal response outlining your intended compliance audit, a presentation of non-infringement theories, or a request to discuss a commercial licensing framework is expected within thirty (30) business days of the transmission of this notice.

Govern yourselves accordingly.

Reinaldo Aguiar Marcano

Works cited

1. 02__ISBN-9781971481296__Portfolio-of-Patent-Applications_and_Declaration-D132.pdf

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